



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35730517

Date: JAN. 15, 2025

Motion on Administrative Appeals Office Decision

Form I-918, Petition for U Nonimmigrant Status

The Petitioner seeks “U-1” nonimmigrant classification as a victim of qualifying criminal activity. *See* Immigration and Nationality Act (the Act) sections 101(a)(15)(U) and 214(p), 8 U.S.C. §§ 1101(a)(15)(U) and 1184(p). The U-1 classification affords nonimmigrant status to victims of certain crimes who assist authorities investigating or prosecuting the criminal activity.

The Director of the Nebraska Service Center denied the petition, concluding that the Petitioner did not establish that she was the victim of a qualifying crime or otherwise establish eligibility for U nonimmigrant status. We dismissed a subsequent appeal. The matter is now before us on combined motions to reopen and reconsider.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the motion.

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit. *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome).

In our prior decision, we concluded that the Petitioner has not met her burden of establishing by a preponderance of the evidence that law enforcement detected, investigated, or prosecuted a qualifying crime as perpetrated against her. We additionally determined that although the Petitioner was the victim of misdemeanor battery under section 242 of the California (Cal. Penal Code), she did not establish that the perpetrator committed, and the Petitioner was in fact a victim of, felonious assault or false imprisonment under sections 245(a)(4) and 236 of the Cal. Penal Code, respectively. *See* 8 C.F.R. § 214.14(c)(4) (providing that the burden “shall be on the petitioner to demonstrate eligibility” and that “USCIS will determine, in its sole discretion, the evidentiary value of [the] . . . submitted evidence, including the Form I-918, Supplement B”)

On motion to reopen, the Petitioner submits a letter from the official who certified the second Supplement B she submitted on appeal (second certifying official). The Petitioner asserts that these new facts establish eligibility, as the letter explains the reason for additional statutory citations on the second Supplement B which indicated multiple crimes investigated or prosecuted as perpetrated against the Petitioner, specifically force likely to produce great bodily injury and false imprisonment under sections 245(a)(4) and 236 of Cal. Penal Code.

In her letter, the second certifying official states that [] Police Department's investigation included felony assault under section 245 of the Cal. Penal Code and false imprisonment under section 236 of the Cal. Penal Code as well as assault, aggravated battery, and attempted murder. She notes that false imprisonment can be committed without force and that "there were elements of this crime that we investigated." The letter further details that after the initial investigation, it was determined that charges under section 242 of the Cal. Penal Code would be the strongest for the prosecution to sustain a conviction, which did not mean other crimes had not been investigated or that an initial crime report prevents a law enforcement agency from later expanding its investigation to include other crimes.

We acknowledge that this new documentary evidence establishes that qualifying criminal activity was investigated because of the Petitioner's report to the police. We therefore withdraw our prior determination to the contrary. However, this evidence does not overcome our previous determination that the Petitioner was not the victim of qualifying criminal activity, which remains a threshold eligibility requirement for the U petition.

The Petitioner is correct that it is possible for multiple crimes to have been investigated or detected even if only one was prosecuted or identified for prosecution. However, as we explained in our decision dismissing the appeal, the Act requires that U petitioners must, in fact, *be victims* of qualifying criminal activity. Section 101(a)(15)(U)(i)(I) of the Act (requiring substantial physical or mental abuse as a result of having been "*a victim of* [qualifying] criminal activity", emphasis added); 8 C.F.R. §§ 214.14(c)(2)(ii)-(iii) (requiring evidence to establish that "the petitioner is a victim of qualifying criminal activity" and a "signed statement by the petitioner describing the facts of victimization"). The letter submitted on motion from the second certifying official does not assert that the Petitioner was in fact the victim of either felonious assault or false imprisonment, or any other qualifying crime for the purposes of U petition eligibility. The second certifying official does not indicate additional factual circumstances surrounding the events giving rise to the Petitioner's U petition that would establish that she was, in fact, *the victim* of qualifying criminal activity. On motion, the Petitioner has not submitted other documentary evidence of new facts establishing that this was the case. As a result, the Petitioner has not established eligibility for the benefit sought and has not met the requirements for a motion to reopen.

A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit.

On motion to reconsider, the Petitioner contests the correctness of our prior decision. The Petitioner relies on 8 C.F.R. § 214.14(a), DHS training materials addressed to law enforcement, the Supplement B instructions, the California Penal Code, and arguments involving due process. She contends that she has established eligibility for the U petition according to these authorities, specifically that she was a victim of qualifying criminal activity as investigated by law enforcement.

As discussed above, on motion to reopen, the Petitioner has established that law enforcement detected and investigated a qualifying crime. We therefore need not address her arguments on motion to reconsider on this topic. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make “purely advisory findings” on issues that are unnecessary to the ultimate decision).

We now turn to the Petitioner’s arguments that she was a victim of qualifying criminal activity. In our previous decision, we determined that the Petitioner was the unfortunate victim of misdemeanor battery under section 242 of the Cal. Penal Code, which is not a qualifying crime under section 101(a)(15)(U)(iii) of the Act. The evidence in the record, including medical documents and a personal statement by the Petitioner, did not demonstrate by a preponderance of the evidence that the Petitioner was a victim of qualifying criminal activity as she claimed. Although the Supplement B listed the criminal acts as felonious assault and false imprisonment, these documents did not establish that the perpetrator committed, and that the Petitioner was in fact a victim of, felonious assault or false imprisonment under sections 245(a)(4) and 236 of the Cal. Penal Code, respectively.

On motion, the Petitioner contends that the factual circumstances of her experience are consistent with false imprisonment under section 236 of the Cal. Penal Code and a felonious assault under section 245(a)(4) of the Cal. Penal Code. In support of this contention, the Petitioner asserts that the police report referenced more serious crimes, including aggravated assault and attempted murder. She moreover claims that we erred in not taking the word of the certifying officials on the Supplement B who indicated that she had been the victim of false imprisonment and felonious assault and that not doing so was an abuse of our discretion. The Petitioner additionally argues that the facts of the police report describe false imprisonment and that the police report was not detailed due to the officers’ limited time to submit a detailed report.

Despite the Petitioner’s assertions, she has not established error in our previous conclusion that the record did not contain documentary evidence that she was actually the victim of qualifying criminal activity. The police report accompanying the Supplement B contained a field for “nature of call” which includes a reference to the following offenses: assaults, battery, attempted murder. But neither Supplement B identified the Petitioner as the victim of attempted murder, nor that this offense was detected, investigated, or prosecuted as perpetrated against her. Furthermore, as we determined in our decision to dismiss the appeal, the police report did not elaborate facts indicating that the Petitioner was, in fact, the victim of false imprisonment or felonious assault. The counsel-authored brief submitted on motion states that the police report characterized the Petitioner as having been struck violently while she was “trapped” and that she “had nowhere to run.” However, counsel’s unsubstantiated assertions do not constitute evidence. *See, e.g., Matter of S-M-*, 22 I&N Dec. 49, 51 (BIA 1998) (“statements in a brief, motion, or Notice of Appeal are not evidence and thus are not entitled to any evidentiary weight”).

Finally, the Petitioner generally argues that we improperly weighed the evidence in the record and did not provide proper notice of required evidence. However, the Petitioner has not explained how we improperly weighed evidence according to our authority under 8 C.F.R. § 214.14(c)(4) to determine the evidentiary value of submitted evidence, including the Supplement B. Further, she has not shown how our decision required documents or types of evidence she did not submit. Rather, we determined that the evidence in the record did not support the Petitioner's claim of eligibility for the U petition. The Petitioner must support her assertions with relevant, probative, and credible evidence. *See Matter of Chawathe*, 25 I&N Dec. at 376. She has not done so here.

In conclusion, although the Petitioner has submitted additional evidence in support of the motion to reopen, she has not established eligibility for the benefit sought. On motion to reconsider, the Petitioner has not established that our previous decision was based on an incorrect application of law or policy at the time we issued our decision. Therefore, the motion will be dismissed. 8 C.F.R. § 103.5(a)(4).

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.